

The Indian Council of World Affairs, Director-General and other Officers and Employees (Salaries and Allowances) Rules, 2011

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The Indian Council of World Affairs, Director-General and other Officers and Employees (Salaries and Allowances) Rules, 2011

Rule

THE-INDIAN-COUNCIL-OF-WORLD-AFFAIRS-DIRECTOR-GENERAL-AND-OTHER-OFFICERS-AND-EMPLOYEES-SALARIES-AND-ALLOWANCES-RULES-2011 of 2011

Published on 9 February 2012

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The Indian Council of World Affairs, Director-General and other Officers and Employees (Salaries and Allowances) Rules, 2011

Published vide Notification New Delhi, the 9th February, 2012

Ministry of External Affairs

G.S.R. 79(E). - In exercise of the powers conferred by sub-section (1) read with clause (f) of sub-section (2) of Section

25 of the Indian Council of World Affairs Act, 2001 (
29 of 2001

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Indian Council of World Affairs, Director-General and other Officers and Employees (Salaries and Allowances) Rules, 2011.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires :-

(a)

"Act" means the Indian Council of World Affairs Act, 2001 (
29 of 2001

);

(b)

"pay" means the pay admissible on the relevant date and includes special pay, personal pay, dearness pay or part of dearness allowance deemed as pay but does not include any allowance, fee or honorarium;

(c)

"Council" means Indian Council of World Affairs;

(d)

"employee" means any person serving the Council in any post specified in the Service Regulations;

(e)

"Government" means the Central Government;

(f)

"Service Regulations" means the regulations relating to service matters made by the Council under Section 26 of the Act;

(2)

(a)

Words and expressions used herein and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act;

(b)

"Appointing Authority" in relation to any post in the Council means the Director General of the Council.

(c)

"Sanctioning Authority" means the Director General of the Council.

3.

Grades and categories of Posts.

(1)

The posts under the Council shall be divided according to their pay bands or pay scales into three Groups as specified in the schedule annexed to the Service Regulations.

(2)

The Sanctioning Authority, in relation to any category of post, shall, subject to the direction of the Governing Body of the Council and prior approval of the Central Government in the Ministry of External Affairs, shall:-

(a)

determine the number of posts in that category;

(b)

determine whether any post created in that category shall be temporary or permanent;

(c)

specify the period of which a temporary post is created; and determine the duties as may be attached to any post in that category.

4.

Appointing Authority.

- Recruitment and all appointment under the Council shall be made by the appointing authority in accordance with the Service Regulations.

5.

Terms and conditions of appointment, Pay Band and Grade Pay or Pay scale and Allowances etc.

(1)

The Council, through its Governing Body, shall determine the terms and conditions of appointment and pay and allowances etc. of its employees or its revision from time to time and the Pay Band and Grade Pay or Pay Scale for the posts under the Council shall be as specified in the regulations made by the Council in this regard and such pay and allowances may not always correspond to pay and allowances of the Central Government employees or periodic revision thereof, however, for deputationists or officials deployed from the Ministry of External Affairs and other Departments or organisations, pay and allowances shall be equivalent to similar posts, under same terms and conditions, as notified by the parent office from time to time.

(2)

Pay, Special Pay, Honorarium, Fee, Allowances etc. for all employees of the Council, shall be regulated in terms of provisions specified in the Service Regulations made by the Council.

6.

Miscellaneous.

- Residual conditions of service :-

(1)

Any matter relating to the conditions of service of an employee, for which no provision is made in these rules, shall be determined in the Council through its Governing Body with concurrence of the Financial Adviser provided that any concession to be provided to the employees of the Council shall not exceed what is provided by the Central Government to its employees, under similar terms and conditions.

(2)

Power to relax. - Where the Council is of the opinion that it is necessary or expedient so to do, it may, with the prior approval of the Central Government and Financial Advisor, by order, for reasons to be recorded in writing, relax any of its provisions of these rules with respect to any class or category of persons.

(3)

Removal of doubts. - Where any doubt arises in giving effect to the application of any of the provisions of these rules, the Director General may obtain the views of the Financial Adviser before seeking a decision through proper channel from the Central Government in the Ministry of External Affairs.

7.

Residual Powers.

- Residual powers relating to matters specified in these rules shall be with the Central Government.

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